

26TRCV01849 26TRCV01849

County: los-angeles

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Case Number: 26TRCV01849 Hearing Date: August 24, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

NICHOLAS REYES MUNOZ

;

Plaintiff,

vs.

nissan north america, inc.

;

Defendant.

Case

No.:

26TRCV01849

Hearing

Date:

August
24, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT NISSAN NORTH AMERICA, INC.'S
DEMURRER TO PLAINTIFF NICOLAS REYES MUNOZ' COMPLAINT

(2)

PLAINTIFF
Nicolas Reyes Munoz'S REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendant, Nissan North America,
Inc.

RESPONDING PARTY: Plaintiff, Nicolas Reyes Munoz

(1)

Defendant
Nissan North America, Inc.'s Demurrer to Plaintiff Nicolas Reyes Munoz' Complaint
is SUSTAINED pursuant to Code of Civil Procedure section 430.10.

(2)

Plaintiff
Nicolas Reyes Munoz is GRANTED twenty (20) days Leave to Amend.

The Court considers the moving
papers filed on July 22, 2026, the opposition brief filed on August 11, 2026,
and the reply brief filed on August 19, 2026.

BACKGROUND

Factual Background

On May 21, 2026, plaintiff Nicolas Reyes Munoz ("Plaintiff") filed the Complaint against defendants Nissan North America, Inc. ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Express Written Warranty (Civ. Code, §§ 1791.2, Subdivision (a), 1794); (5) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794); (6) Violation of the Magnuson-Moss Warranty Act; (7) Violation of Automotive Repair Act; (8) Violations of California Commercial Code; and (9) Violation of Business and Professions Code § 17200.

On June 19, 2026, Defendant sent a meet-and-confer to letter to Plaintiff's counsel to address the alleged deficiencies in the Complaint and to notify them of Defendant's intention to file a demurrer. (Declaration of Scott D. Sharp ("Sharp Decl."), ¶ 3, Exh. B.)

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims

renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer, the moving party is required to meet and confer in person, by telephone, or via video conference with the party who filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer. (Code Civil Proc., § 430.41, subd. (a)(4).)

On June 19, 2026, Defendant sent a meet-and-confer to letter to Plaintiff’s counsel to address the alleged deficiencies in the Complaint and to notify them of Defendant’s intention to file a demurrer. (Sharp Decl., ¶ 3, Exh. B.)

Although the parties did not engage in the meet-and-confer process as required, the Court will still consider the merits of the pleadings. An insufficient meet-and-confer process is not a valid reason to overrule or sustain a demurrer.

DISCUSSION

Seventh Cause of Action – Violation
of Automotive Repair Act

Defendant demurs to the seventh

cause of action for violation of Automotive Repair Act on two grounds: (1) "Plaintiff's Complaint is devoid of any factual allegations as to how [Defendant], the manufacturer of the Subject Vehicle who admittedly never performed any repairs on the vehicle, somehow falls within the ARA's definition of an 'automotive repair dealer[;]' " and (2) "the ARA makes it clear the ARA only applies to repair facilities, not automobile manufacturers." (Dem., p. 4:9-12, 14-15.) The Court agrees with the first argument and does not address the merits of the second.

"The director, if the automotive repair dealer cannot show there was a bona fide error, may deny, suspend, revoke, or place on probation the registration of an automotive repair dealer for any of the following acts or omissions related to the conduct of the business of the automotive repair dealer, which are done by the automotive repair dealer or any automotive technician, employee, partner, officer, or member of the automotive repair dealer:

¶ ... (2) Causing or allowing a customer to sign

any work order that does not state the repairs requested by the customer or the

automobile's odometer reading at the time of repair." (Bus. & Prof. Code, § 9884.7, subd. (a)(2).) " 'Automotive repair dealer' means a person

who, for compensation, engages in the business of repairing or diagnosing malfunctions of motor vehicles, or engages in the business of collecting compensation for automotive repair services that are referred or sublet to someone other than the dealer or their employees." (Bus. & Prof. Code, § 9880.1, subd. (a).)

Plaintiff's seventh cause of

action asserts a claim under Business and Professions Code section 9884.7, subdivision (a)(2), which appears to be applicable exclusively to automotive repair dealers. However, Plaintiff does

not provide any factual allegations to substantiate that Defendant qualifies as an automotive repair dealer under the relevant statutes. Instead,

Plaintiff offers a conclusory statement claiming that "Defendant and its authorized repair facilities in the state is an 'automotive repair dealer' as defined in the B & P § 9880.1(a)."

(Compl., ¶ 43.) Consequently,

Plaintiff fails to demonstrate the applicability of the statute to Defendant.

As such, Defendant's demurrer with

respect to the seventh cause of action for Automotive Repair Act is SUSTAINED

Ninth Cause of Action – Violation of

Business and Professions Code § 17200

Defendant demurs to the ninth

cause of action for violation of Business and Professions Code § 17200 on two

grounds: (1) Plaintiff lacks standing to bring a claim; and (2) Plaintiff fails

to state sufficient factual allegations to constitute a cause of action. (Dem., p. 6:1-7:27.) The Court agrees with the first argument and

does not address the merits of the second.

To state a cause of action for unfair competition ("UCL"), a plaintiff

must establish that the defendant engaged in "unlawful, unfair or

fraudulent business act or practice and unfair, deceptive, untrue or

misleading advertising." (Bus. &

Prof. Code, § 17200, emphasis added.)

"[S]tanding to sue under the statute, as defined by Business and

Professions Code section 17204, is confined to any person who has suffered

injury in fact and has lost money or property as a result of unfair

competition. [Citations.] [Citation.] In other words, to have standing to bring a

section 17200 cause of action, a plaintiff must (1) establish a loss or

deprivation of money or property sufficient to qualify as injury in fact, i.e.,

economic injury, and (2) show that the economic injury was the result of, i.e.,

caused by, the unfair business practice or false advertising that is the

gravamen of the claim. [Citation.] As to the injury in fact, or economic injury,

requirement, the injury must be an invasion of a legally protected interest

which is (a) concrete and particularized, [citations]; and (b) actual or

imminent, not conjectural or hypothetical, [citations]. [Citation.]"

(Bower v. AT&T Mobility, LLC (2011) 196 Cal.App.4th 1545,

1554, citations and quotations omitted; see Kwikset Corp. v. Superior Court (2011)

51 Cal.4th 310, 320-321.) Here, Plaintiff does not assert that they lost

money or property as a result of unfair competition, nor do they present any

factual allegations in their Complaint to support such claims. Moreover, Plaintiff does not address this

argument in their opposition brief. As

such, Defendant's demurrer with respect to the ninth cause of action for violation

of Business and Professions Code § 17200 is SUSTAINED.

ORDERS

1) Defendant

Nissan North America, Inc.'s Demurrer to Plaintiff Nicolas Reyes Munoz'

Complaint is SUSTAINED.

2) Plaintiff

Nicolas Reyes Munoz is GRANTED twenty (20) days Leave to Amend.

3) Defendant

is ordered to provide notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: August 24, 2026

Tamara

Hall

Judge

of the Superior Court